

IN THE THIRD CIRCUIT COURT FOR LAFAYETTE COUNTY MISSISSIPPI

STATE OF MISSISSIPPI

Vs

Cause No. LK17-295

MATT REARDON

Motion for Relief from Judgment or Order

Comes now before the court Matthew Reardon, the Movant, and now respectfully moves this court under this cause number grant Movant's Motion for Relief from judgement or order pursuant to Rule 60 (b) (4) of The Mississippi Rules of Civil Procedure. Movant acknowledges that he has an open appeal in the MS Court of Appeals which addresses the Post-Conviction Relief filed in this court on July 7, 2020. However, the original criminal cause was not properly addressed in matters Movant now feels were the best of ways. Pursuant to the Mississippi Rules of Civil Procedure, the true governing doctrine on Movant's Post Conviction Relief, the Judgement on which he filed his post-conviction relief upon should have been rendered null, void, and invalid, which in turn has burdened the Movant on perfecting his appeal of the denied post-conviction relief. Movant has long alleged this complaint was FRAUDULENT, without justification, merit, and evidence since day one and Movant properly raises the constitutionality of Movant's plea in a situation where Movant was denied basic due process rights/constitutional rights over the entire 6-weeks leading up to his plea entered in criminal cause LK17-295. Movant is now asking for this court to promptly do so and declare it so based on the cited, well settled law brought forth in this motion on principal, else Movant hereby invokes his rights under the Williams-Jennings Reservation and places the State of Mississippi and all liable parties of the violations of not only the State of Mississippi's own statutes, rules and laws, but significant violations of Federal Law through a multitude of Federal Constitutional Civil Rights violations as well, which Movant will detail out in this motion. Movant states his motion will show that the State of Mississippi has had an obligation and has known of its obligation to ensure the accused are afforded Due Process in order to safeguard the constitutional rights of it's citizens

and to preserve equality and integrity. The State of Mississippi is aware of the consequences derived from depriving a citizen of his/her due process rights, including the requirement in and that in the event it is made aware of constitutional/due process right violations that it is mandated, and further has an absolute obligation to provide corrective process pursuant to not only its own stated guidelines, rules, and laws but well-established Federal Case Law as well.

MOVANT HEREBY MAKES HIS ARGUMENT AND OFFERS IN SUPPORT OF HIS MOTION:

- I. A party may move to set aside a void judgment pursuant to MRCP Rule 60(b)(4) more than six months after the entry of a judgment if the delay in moving for relief was reasonable.

See Ladner v. Logan, 857 So. 2d 764, 770 (Miss. 2003)

- II. A judgment is void if the trial court lacked jurisdiction over the subject matter or the parties **or acted in a manner inconsistent with due process of law.** See Bryant, Inc. v. Walters, 493 So. 2d 933, 938 (Miss. 1986).

- III. The trial court has discretion to grant or deny a Rule 60(b) motion, unless the judgment is void, in which case the court is **required** to set aside the judgment. See Sartain v. White, 588 So. 2d 204, 211 (Miss. 1991). The key word in this being the court is **REQUIRED TO SET ASIDE A VOID JUDGEMENT.**

- IV. On Friday May 26, 2017 approximately between the hours of 3pm-4pm Reardon was taken into custody in Oxford, MS City Square by Lafayette County Sheriffs Department and charged with Aggravated Stalking. A warrant had allegedly been issued to make the arrest, although Reardon was never show a warrant at the time of arrest nor was he ever informed of his charge until he was booked at the Lafayette County. The Criminal information in this matter states the appellant: Did feloniously commit the crime of stalking as defined in section 97-3-107 (1) and did so while displaying a deadly weapon, to wit: an AR15 rifle with, the intent to place Todd and or Ashley Lynch, in reasonable fear

of great bodily injury, a violation of section 97-3-107(2) of the Mississippi Code of 1972, as amended, **WHICH OFFENSE IS PUNISHABLE BY NOT MORE THAN 5 YEARS IMPRISONMENT AND A \$3,000 FINE OR BOTH.**

- V. Appellant did not receive an Initial Hearing in which Appearance Bond was Issued until Tuesday May 30th, 2017 between the estimated hours of 9am-10am. At this point, Reardon was escorted across from the backside of the Lafayette County Detention Center to the Lafayette County Justice Court for an Initial Hearing before Judge Carolyn Pettis-Bell. From the very beginning, this amounted to False Imprisonment and over-detention in that pursuant to Mississippi Law and Federal Law Governing the Due Process Rights of The Accused, Lafayette County and The State of Mississippi had A MAXIMUM OF 48-HOURS TIME to set an Initial Hearing and bring the accused before a Judge in order for Bond to be set. This is no new law or requirement, and it was an obligation that Lafayette County Sheriff's Department had known upfront of its duties to comply with.
- VI. Miss Rules of Criminal Procedure Rule 5.1(b)(3) details out that if a person is taken into custody, the person shall be taken without unnecessary delay, **AND IN NO EVENT** later than forty-eight (48) hours after arrest, before a judge who shall proceed with an initial appearance. If the person arrested is not taken before a judge within forty-eight (48) hours, ***THE PERSON DETAINED SHALL BE RELEASED ON EXECUTION OF AN APPEARANCE BOND IN THE MINIMUM AMOUNT SET PURSUANT TO RULE 8 AND DIRECTED TO APPEAR AT A SPECIFIED TIME AND PLACE.*** Rule 5.1(b)(3) conforms to the United States Supreme Court's holdings in Gerstein v. Pugh, 420 U.S. 103, 95 S. Ct. 854, 43 L. Ed. 2d 54 (1975), and County of Riverside v. McLaughlin, 500 U.S. 44, 111 S. Ct. 1661, 114 L. Ed. 2d 49 (1991).

- VII. According to the range chart on Miss Rules of Criminal Procedure Rule 8.2, *which was updated earlier that same year (2017)*, a bond for an alleged crime that could receive UP TO 10-YEARS INCARCERATION should be set in the range of \$5,000- \$50,000. Appellant reinforces that he was not charged with any capital crime or offense which is a non-bailable offense and that in fact the crime he was accused of receives a maximum of 5-YEARS INCARCERATION. As Such, **THE MINIMUM BOND AMOUNT PURSUANT TO RULE 8 THAT THE MOVANT "SHALL" HAVE BEEN RELEASED ON WOULD HAVE BEEN \$5,000!**
- VIII. When factoring in two separate considerations regarding the bond amount set AND the violation for taking nearly TWICE the amount of time to bring movant before the court for his initial appearance constitutes a DIRECT violation of Appellant's 8th Amendment Federal Constitutional Rights along with Art. 3, § 29 of the Mississippi Constitution which explicitly prohibits the setting of Excessive bail and/or setting bail/bond in a punitive way
- IX. **APPELLANT WAS NEVER ADVISED OF HIS RIGHT TO A PRELIMINARY HEARING ALONG WITH ONE NEVER BEING SET WITHIN 14 DAYS AS REQUIRED IN FELONY PROCEEDINGS.** This is not a discretionary rule as Miss. R. Crim. P. 6.1 states: "If a preliminary hearing has not been commenced within fourteen (14) days as required under subsection (a) and unless such hearing has been postponed as provided in subsection (d), the defendant shall be released on recognizance." Subsection (D) did not apply. **AS SUCH THE STATE OF MISSISSIPPI WAS OBLIGATED TO RELEASE MOVANT ON HIS OWN RECOGNIZANCE BY THE 15TH DAY; THIS DID NOT HAPPEN**
- X. Considering the aforementioned, Unless the State of Mississippi can somehow demonstrate how the accused crime is considered non-bailable particularly when Movant attempted to offer up exculpatory evidence of his undeniable innocence at the initial appearance before, Judge Bell, **THE REMAINING 4-WEEKS MOVANT STAYED INCARCERATED AMOUNT TO FALSE**

IMPRISONMENT AND OVER-DETENTION, along with a plethora of additional due process/constitutional rights violations simultaneously and concurrently aggrieved by the movant.

- XI.** Currently there sits an appeal sits before the Mississippi Court of Appeals based upon a denial by this court on Movant's **Petition for Post-Conviction Relief** he filed on July 7, 2020 and referenced to under cause L20-316. (*Petition, Exhibits, & Denial Attached as EXHIBIT A*).
- XII.** The first denial by this court on L20-316 came July 30, 2020 to which Movant refiled a timely **"Motion for Re-Hearing under MRCP Rule 59 Before the Honorable Judge Kent Smith"** due to his post-conviction relief originally being assigned to the newly appointed Circuit Court Judge Kent Smith. The trial court summarily denied this Motion for Re-Hearing under MRCP Rule 59 which was filed based upon newly discovered evidence and a plethora of violations aggrieved by Movant due to the highly immoral and unconstitutional acts committed on behalf of the State (*Motion and Denial Attached as EXHIBIT B*).
- XIII.** Up until August 12, 2020 the assigned Judge was newly appointed Circuit Judge Kent Smith, yet for reasons unbeknownst to Movant, Judge John Kelly Luther continued ruling on and further denying each of Movant's motions and petitions.
- XIV.** Movant would raise facts to Circuit Court Judge John Kelly Luther having had upfront knowledge of fraudulent acts and organized crime committed on behalf of Officials in Lafayette County and on behalf of the State of Mississippi which Movant claimed in multiple instances rose to the level of Organized Crime and significant intentional violations of the RICO Act.
- XV.** Movant states that AFTER he filed his motion for Recusal on August 12, 2020 regarding rulings by Judge John Kelly Luther, the assignment of Judge on this cause was FRAUDULENTLY

changed in Delta Computer Systems to reflect assignment of Judge John Kelly Luther. Prior to that it had still reflected Judge Kent Smith in the official record. Movant states that this is far from a Clerical Error due to all of the assertion's Movant had made and provided evidence to regarding conflict of interest and further warranting recusal due to Judge John Kelly Luther having upfront knowledge of crimes that were committed and continued to be committed.

XVI. A State that possesses knowledge of fraudulent deception and perversion of its own legal system and process allowing for such incurable defects to compound and accumulate at the expense of a private citizen's life, liberty, and happiness sends permanent disrepute into the State Judiciary.

XVII. Movant sent a detailed email to Judge Luther's Court Administrator, Kathy Sturdivant on June 1st, 2020. Ms Sturdivant replied the following day (June 2 2020) stating that Judge Luther had reviewed the emails Movant had sent and asked her to respond that **"if Movant wished to challenge a plea of guilty, the rules needed to be followed as outlined in the Mississippi Code for Post-Conviction Relief."** *Movant re-introduces the emails as EXHIBIT C*

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XVIII. Movant had no other option but to file for post-conviction relief pro-se on July 7th 2020 as no attorney was willing to assist with representation and Movant could not afford an attorney due to the serious injuries incurred due to this very cause in 2017.

XIX. In the original criminal cause LK17-295, significant error and constitutional rights violations occurred on multiple occurrences and in uncorrectable, unjustifiable areas which in turn amounted to manifest error being committed in LK17-295 which Movant has continued to assert. The State of Mississippi has a mandated obligation to provide corrective process free from delay when It has been made aware of constitutional violations aggrieved. The three previous denials in L20-316 constitute three additional direct violations of Movant's constitutional rights which guarantee equal protections under the laws of

both the state and The United States. Movant would notice the State of Mississippi and Lafayette County of these three incurred violations/counts in a notice of intent to litigate the matter in particular. In turn these issues should be granted immediate relief from what should be considered an involuntary/voided plea made under duress AFTER the state was in egregious violation of Movant's stated rights.

XX. Movant states that the issues pertaining to due process are Binary issues meaning either they happened/occurred or they didn't. There is no middle ground. These mandated Due Process Rights are REQUIRED in order to ensure that all accused receive a fair trial and to prevent a complete miscarriage of justice such as what has transpired here at the negligent and malice hands of Lafayette County Officials, Employees, and Officials/Employees working on behalf of the State of Mississippi.

XXI. Pursuant to well established and cited case law, the order/judgement must be declared void and must be set aside due to it being inconsistent with due process of law.

Bryant, Inc. v. Walters, 493 So. 2d 933, 938 (Miss. 1986).

XXII. That denial of this motion would amount to a rogue deviance from the State of Mississippi's own well-established rules and laws laid out and would further aggrieve irreparable harm/injury upon movant through denying him his absolute right to vindication and his rudimentary demands for justice through the complete deprivation of corrective process and delay of the inevitable by and through its own established system of law. In turn this not only compounds damages that the State of Mississippi would ultimately be held liable for, but stands to send permanent disrepute into the state judiciary.

XXIII. A Habeas corpus petition was filed by the public defender commanding the sheriff to bring Movant before the court to show just cause for the illegal confinement of Movant, and while

the petition was approved to proceed in forma pauperis, Movant was never brought before the court and was further illegally confined for an additional 4 weeks.

XXIV. Movant was never made aware of this Habeas petition ever being filed until nearly 6 months after he plead out to free himself for the sake of his child and his sanity after being unlawfully held for a crime that was never truly committed. This amounts to misrepresentation by Movant's council and Movant has been requesting answers to no avail making the Movant question whether fraud had occurred here as well, yet unsure where the true responsibility and liability falls.

XXV. All requests by Movant to have his bond lowered to a constitutionally fit amount went completely ignored after being given a bond amount that was three times higher than the maximum guidelines established less than a year prior by way of the Mississippi Supreme Court. Movant/Movant never caused any physical harm to anyone and never had been accused of a felony crime prior to this allegation.

XXVI. Movant/Movant had pending ongoing litigation against Lafayette County due to a highly contestable arrest made May 1st, 2017 when movant was arrested for disorderly conduct for standing on public property holding the then state flag of Mississippi. Movant states this cause stemmed from a mutually beneficial arrangement which provided benefit and shielded Lafayette County Sheriff's Department and Deputy Timmy Pruitt from liability stemming from the May 1st 2017 Arrest made.

XXVII. At the same time, it accomplished the intended goal of Rhea and Robyn Tannehill, effectively silencing Movant through taking out an emergency injunction over constitutionally

protected activity along with their own embellishments and interpretations of certain things Movant had said which NEVER conveyed a physical threat and in referenced the reporting of serious crimes to the proper authorities which was in fact done. All of this done in order to prevent Movant from speaking and addressing the board of aldermen at City Hall on June 6, 2017 (The Day Robyn Tannehill was elected Mayor of Oxford) which Movant was slotted in advance to speak at the conclusion of Joey East in order to petition the Government for a redress of grievances, an absolutely key part of the first amendment.

XXVIII. Movant states that it is this reason along with his child and girlfriend at the time which would have easily shown and conveyed the fact that movant/Movant was not a flight risk, not to mention movant is a USMC Veteran that has never had any prior history of being a flight risk. **Therefore, it is entirely the impression of the movant that bond was used in a punitive way to influence an outcome of a sham legal proceeding which was initiated by Lafayette County (State of Mississippi), it's employees, along with elected and appointed officials under knowingly false pretenses by a Justice Court Judge (Carolyn Bell) whom has had a history of setting bonds on the lower end of the bond guidelines.**

XXIX. The fact that movant was interrupted by Judge Bell and advised of his fifth amendment rights on two separate occasions when he tried to show information upfront which would show the impossibility of movant to have committed the alleged crime should concern and frighten every American. Movant asserts in complete confidence what all precluding evidence would demonstrate a clearly shown political attack on Movant by way of criminal conspiracy, racketeering, organized crime, and the successful deprivation and continued deprivation of the Movant's rights. Movant/Movant states that his life was completely ruined, and millions of splinters sent ripping through the surrounding areas at the hands of

an extortionist scheme which has perpetuated itself by ways of Movant's ex-girlfriend and mother of his child initiating additional legal proceedings which she, her attorneys, and the state of Mississippi know to be false yet have allowed her to continue to get away with making the Defendant, the State of Mississippi complicit in the continued fraud and attempts to frame an innocent American whom doubles as a USMC Veteran.

XXX. Movant asserts this conduct and behavior is dangerous, treasonous, and downright constitutionally damning. Even more concerning is the fact that all evidence shows Movant's innocence in which Defendant abused its own system, refused to follow its own rules laid out, insisted on carrying its scheme against Movant regardless of who witnessed the commission of its own crimes and regardless of how blatantly obnoxious, highly prejudicial, overly oppressive, and tyrannically suppressive it attacked and inflicted irreparable harm on Movant which has had far reaching consequences. After being unlawfully held captive in the Lafayette County Detention Center for six weeks' time, Movant was coerced by his legal counsel (at the time) Brennan Horan to plea out in order to get out and avoid being "Railroaded" by additional charges that the state allegedly was going to start "piling on" in order to try to get a quick yet highly immoral win despite indisputable evidence being brought to the attention of Movant's attorney whom looking back now would appear to have been "Bought" or "Paid For" to help influence a favorable outcome. Especially when this attorney claimed to have gone on "quail hunts with Judge Luther" and went to law school with Rhea Tannehill, further asserting that he "knew him well".

XXXI. That Movant's Guilty plea was involuntary due to a denial of his due process rights as guaranteed by the United States and State of Mississippi Constitutions, thus making his plea of guilty a violation of the laws of the State of Mississippi That Movant received inadequate representation by his legal counsel on record, in which adequate counsel representation likely would have resulted in an outright dismissal of the State's charge. Furthermore, Movant only met with his legal council one time and no discovery motion was ever requested by Movant's legal counsel. That the state has

refused to comply with a Freedom of Information Act Request for information regarding the phone call received on May 24, 2017 which through the state's own admission on a more recent public records request ultimately led to the charge being levied against the Movant.

XXXII. Movant re-asserts by way of Fraud and collusion that this entire case has been tainted and manipulated in a plot that has continued to Deprive Movant of his Rights

XXXIII. There exists additional evidence of material facts, not reasonably discoverable at the time involuntary plea was given and not previously presented at that time, which requires vacation of the conviction or sentence in the interest of justice.

MOVANT STATES IN SUMMARY

The facts in this cause are shocking, Unjustifiable, and indifferent to the fullest of Movant's Due Process Rights along with other key Constitutional rights Movant was entitled to that this entire completely sham criminal proceeding stemmed from. Movant was not allowed to speak to offer concrete evidence of his innocence, and further Movant was DENIED the opportunity to obtain a lower bond amount that fell within the established guidelines that the Movant or his family could afford. Movant's bond was set three times higher than maximum guidelines allowed despite the State of Mississippi not producing so much as a single piece of evidence suggesting it had a valid claim. Movant in this cause asserted he had evidence to prove his innocence which should have been heard and examined up front and most certainly at a Preliminary Hearing. Unfortunately for the Movant, he never was afforded a Preliminary Hearing whether it be through the sole fault of the State, or a shared fault of the Movant's appointed legal counsel. It's more than a coincidence that all of this transpired when assessing the factual evidence surrounding it. Movant was given a bond FAR

outside of established guidelines exactly 7 days prior to the soon to be incoming mayor's election in order to help ensure that Movant remained locked away, suppressed, and unable to fulfill his constitutional duty. Movant was given what all impressions gave off as a "forced plea deal" exactly 7 days after Tannehill was sworn into office and assumed command as Mayor. Movant had to agree to five years supervised probation which encompassed a banishment order exiling him from Oxford and Lafayette County for a period of 5 years, AND a covenant to not sue Lafayette County, its officials, its employees, The City of Oxford, its officials, its employees, Sheriff Buddy East or any of his duly appointed deputies, as well as the Victim/Claimants Todd and Ashley Lynch. This effectively barred Movant from suing for anything relating to LK17-295 or the prior matter involving the May 1st, 2017 arrest made. Movant poses before this court the obvious question of WHY would that be mandated if foul play wasn't involved and how many other cases it is aware of where the person charged had to agree not to sue the person claiming they were put in fear of their life? Especially when the Movant didn't even own an AR-15 or any type of rifle or long gun, and only possessed a 40cal Taurus Pistol until May 20th, 2017. This has been the most corrupt, disgusting showing of force and a blatant abuse of law enforcement appearing more like mob tactics with a completely grotesque, unconscionable, politically motivated attack on Movant which couldn't have been done without the helping hand of corrupt law enforcement officers and preferential treatment given to the true criminals by the courts. Movant has demonstrated nonstop evidence and has gone above and beyond to seek vindication along with holding the truly guilty parties responsible yet to no avail due to the Movant being public enemy number one due to the outrageous civil and criminal liability the State of Mississippi has imposed on itself in a situation that in no way can Plausible Deniability ever be asserted as a defense to its culpably negligent actions. That added with the continued fictitious petitions filed by Movant's ex-girlfriend and mother of his now 6-year-old child, Phyllis Marie Crowder-Kester show that the situation is spiraling out of control through organized crime, Criminal and Civil Conspiracy, and The false reporting of crimes, ALL OF WHICH should be prosecuted under the RICO Act yet the State and its agencies have chosen to stand down and continue standing down. It would

appear through the lack of care shown by Defendant in this cause (State) that its agencies tasked with creating reports and deterring crimes has in fact been complicit in the ongoing fraud consisting the false reporting of crimes, further giving off all impressions that the Defendant is aiding and protecting the criminal acts of true criminals to protect itself from the legal liability it brought on itself. The complete culpable negligence shown has continued to compound the ongoing crisis and has now risen to uncharted levels. Movant hereby asserts the claims he has made were made to the best of his ability and asserts under a signed and sworn affidavit that he was the target of a politically motivated quid-pro-quo witch-hunt where he was charged with a crime that never even occurred, and further that he never could have committed. Movant has been and continues to be denied the equal protections of the laws which exist to provide protections and relief from the Federal Government from such abuse by the states, and Movant continues to be victimized by false petitions filed in Lafayette County Chancery Court as well as Olive Branch Municipal Court and all stemming from a connection between Crowder, her attorneys, and state/county/city officials. It outrages the Movant that a simple arrest and lie told over three years ago now has created a full-blown constitutional crisis, and there is no end in sight without relief granted on this motion and for action to be taken against the truly criminal parties demonstrating a willingness for the Defendant to purge itself of its complicit, negligent, and unconstitutional decisions. The level of involvement amounting to fraud which show all signs of public corruption becomes increasingly evident when the other legal matters are given a closer look by a man who swore a never-expiring oath to his country to protect and defend its constitution.

WHEREFORE ALL PREMISES CONSIDERED

Movant/Movant prays that this court grant his motion for relief from judgement or order by taking into consideration all stated facts within, and setting aside Movant's plea which should be considered voided and involuntary, else movant moves this court to re-open this cause for the purposes of trial to examine such claims brought forth which would go to proving Movant's innocence in the criminal cause LK17-295. Should this motion be denied, movant notices the State of his immediate intention to litigate these matters in the proper federal jurisdiction in order to test the sufficiency and constitutionality of the rulings within.

Movant hereby sends a copy of this motion to the Office of the Attorney General of Mississippi in hopes that the repugnant conduct in regard to extreme prosecutorial misconduct by its district attorneys and prosecutors be immediately looked into and hopefully curtailed. If nothing else it provides more documented notice of a significant problem needing to be addressed immediately.

Movant also prays for any other general or special relief to which he may be entitled

Respectfully Submitted this 23rd Day of November 2021

Matthew Oliver Reardon
Movant/Defendant
117 CR 401
Oxford, MS 38655

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IN THE CIRCUIT COURT OF LAFAYETTE COUNTY, MISSISSIPPI

MATTHEW REARDON
PETITIONER/PLAINTIFF

V.

STATE OF MISSISSIPPI
DEFENDANT

NO. LK17-295

LAFAYETTE COUNTY
FILED

JUL 07 2020

JEFF BUSBY
CIRCUIT CLERK
BY: AMS D.C.

MOTION FOR POST CONVICTION RELIEF

Comes now the Petitioner, Pro Se, and files this his Motion to set aside his plea of guilty and sentence rendered thereon and in support thereof would show unto the Court the following:

1.

That Petitioner waived formal indictment in the Third District of the Circuit Court of Lafayette County, Mississippi for Aggravated Stalking, to-wit: an AR15 rifle with intent to place Todd and/or Ashley Lynch in reasonable fear of great bodily injury, a copy of said Criminal Information was filed in this Court on the 6th day of July, 2017 and attached hereto as Exhibit "A"

2.

That on Petitioner plead guilty to the aforementioned alleged crime and was sentenced by Circuit Court of Lafayette County, Mississippi, on the 6th of July, 2017 in cause number LK17-295 to five years (5) in the custody of the Department of Corrections with the balance of sentence (five years) (5) to be served on supervised probation, a true copy of which is attached hereto as Exhibit "B".

3.

That this Motion is filed pursuant to MS Code 99-39-5 (Mississippi Uniform Post-Conviction Relief Collateral Act) and is filed in the correct jurisdiction and venue

4.

That the Respondent was in direct violation of the Petitioner's 1st, 8th, and 14th constitutional rights at the time the plea was given

5.

That petitioner's guilty plea was involuntary due to a denial of his due process rights as guaranteed by the United States and State of Mississippi Constitutions, thus making his plea of guilty a violation of the laws of the State of Mississippi.

6.

That petitioner received inadequate representation by his legal counsel on record, in which adequate council representation likely would have resulted in an outright dismissal of the State's charge. Furthermore, Petitioner only met with his legal council one time and no discovery motion was ever requested by Petitioner's legal council.

7.

That the state has refused to comply with a Freedom Of Information Act (FOIA) request for information regarding the phone call received on May 24, 2017 which through the state's own admission on a more recent public records request ultimately led to the charge being levied against Petitioner. A copy of State's admission to receiving a phone call and basing their allegation upon the information received is attached hereto as Exhibit "C".

8.

That there exists additional evidence of material facts, not reasonably discoverable at the time of involuntary plea was given and not previously presented and heard, which requires vacation of the conviction or sentence in the interest of justice

WHEREFORE, PREMISES CONSIDERED, Plaintiff prays that this Court will enter an Order vacating and setting aside the guilty plea herein and the sentence in cause number LK17-295.

Respectfully submitted

Matthew Oliver Reardon
Petitioner/Plaintiff

By: 

Exhibit A

CRIMINAL INFORMATION

Aggravated Stalking
Miss Code Ann. 97-3-107(2)
Nm 5 years , or a \$3,000 fine or both

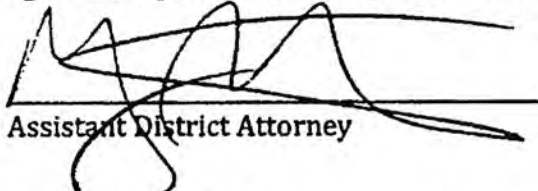
STATE OF MISSISSIPPI
COUNTY OF LAFAYETTE

CAUSE NO.: LK17-295

COMES NOW the State of Mississippi, by and through the District Attorney in and for the Third Circuit Court District of Mississippi, and charges by Criminal Information that, upon information and belief, that the said:

MATT REARDON

late of the County and State aforesaid on or about June, 2016, ^{or before May 8, 2017} in the County and State aforesaid, and within the jurisdiction of this Court, did unlawfully, willfully, feloniously commit he crime of stalking as defined in section 97-3-107 (1) and did so while displaying a deadly weapon, to wit: an AR15 rifle with the intent to place the Todd and/or Ashley Lynch in reasonable fear of great bodily injury, in violation of section 97-3-107(2) of the Mississippi Code of 1972, as amended, which offense is punishable by not more than 5 years imprisonment and a \$3,000 fine or both, contrary to the form of the statute and against the peace and dignity of the State of Mississippi.


Assistant District Attorney

FILED: 7-6, 2017

Recorded: _____, 2017

Barbara Mosley CLERK

_____, CLERK

In the Circuit Court of LAFAYETTE COUNTY

TO THE MISSISSIPPI DEPARTMENT OF CORRECTIONS:

NOTICE OF CRIMINAL DISPOSITION

You are hereby notified that at the JULY 2017 Term of the Circuit Court,
 Judge John Kelly Luther presiding, the following disposition was
 imposed for the crime(s) hereinafter described:

I. A. Disposition(s) Reported: Prisoner Commitment - Suspended Sentence/Probation
Revocation - Acquittal - Other
Non-Adjudication - RID - Shock Probation
 A-1. Provisional Sentence Bad Check Div. Pgm. - Restituion in CNTY
House Arrest/ISP - Parchman Alcohol & Drug Program
 B. Conviction as a Result of: Guilty Plea - Guilty Plea after days Trial
Jury Verdict after Days in Trial - Rev. Hearing

II. Name MATT REARDON Alias
 SSN [REDACTED] Race W Sex M Date of Birth [REDACTED]
 Last Known Residence [REDACTED]

Place of Birth ATLANTA GA Country of Citizenship [REDACTED]
 Alien Registration/Immigration # [REDACTED] FBI # [REDACTED]

III. Count Charge Cyberstalking
 Sentenced MSCode 97-3-107(2) Indicted MS Code 97-3-107(2)
 Count Charge [REDACTED] Indicted MS Code [REDACTED]
 Sentenced MSCode [REDACTED] Indicted MS Code [REDACTED]
 Count Charge [REDACTED] Indicted MS Code [REDACTED]
 Sentenced MSCode [REDACTED] Indicted MS Code [REDACTED]

IV. Date of Sentence 07/06/2017 Indictment Date 07/07/2017 DA Bar# 000010650
 Sentence(s) Imposed by Order: Count SUPERVISED PROBATION BALANCE OF SENTENCE
 Credit (Days) Count [REDACTED]

	TO BE SERVED	SUSPENDED	PROBATION	POST RELEASE	METHOD OF DISP.
Count					SUPERVISED PROBATION
Count					
Count					

Conc: [REDACTED]Cons: [REDACTED]

Conditions of Sentence: Habitual Psychological/Psychiatric Alcohol/Drug
 Other: NO CONTACT W LYNCH'S BANISHED FROM LAFAYETTE EXCEPT MANDA CHAN COURT

V. Dates Confined to to to to
to to to to
to to to to

Released on Bond Pending Appeal toCurrently Housed In [REDACTED]VI. Fine [REDACTED] Indigent Fee [REDACTED] Restitution [REDACTED] Court Costs [REDACTED]Conditions of Payment [REDACTED]

BARETTA MOSLEY

LAFAYETTE COUNTY COURT

By: [Signature]

July 07, 2017

Send Prisoner Commitments, Provisional Sentence Orders and Revocation Orders To:

Records Department

MDOC (Fax: 601-973-3879)

P.O. Box 24388

Jackson, Ms 39205

Court Statistics Division

Administrative Office of Courts (AOC)

P.O. Box 117

Jackson, MS 39205-0117

Send Suspended Sentence/Probation Notices, Provisional Sentence Orders and Rev. Orders to:

Data Operations

MDOC (Fax: 601-973-3879)

P.O. Box 24388

Jackson, MS 39205

Court Statistics Division

Administrative Office of Courts (AOC)

P.O. Box 117

Jackson, MS 39205-0117

Send Acquittal/Other Notices to: Court Statistics Division, AOC at its address listed above.

TO THE MISSISSIPPI DEPARTMENT OF CORRECTIONS:

NOTICE OF CRIMINAL DISPOSITION

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- I. A. Disposition(s) Reported: Prisoner Commitment Suspended Sentence/Probation
Revocation Acquittal Other
A-1. Provisional Sentence Non-Adjudication RID Shock Probation
Bad Check Div. Pgm. Restitution in Cnty
House Arrest/ISP Parchman Alcohol & Drug Program
B. Conviction as a Result of: X Guilty Plea Guilty Plea after days Trial
Jury Verdict after Days in Trial Rev. Hearing

II. Name MATT REARDON Alias
SSN Race W Sex M Date of Birth
Last Known Residence

Water Valley MS 38965
Place of Birth ATLANTA GA Country of Citizenship
Alien Registration/Immigration # FBI #

III. Count Charge Cyberstalking
Sentenced MSCode 97-3-107(2) Indicted MS Code 97-3-107(2)
Count Charge
Sentenced MSCode Indicted MS Code
Count Charge
Sentenced MSCode Indicted MS Code

IV. Date of Sentence 02/21/2018 Indictment Date 07/07/2017 DA Bar# 000010650
Sentence(s) Imposed by Order: Count SUPERVISED PROBATION BALANCE OF SENTENCE
Credit (Days) Count

	TO BE SERVED	SUSPENDED	PROBATION	POST RELEASE	METHOD OF DISP.
Count					SUPERVISED PROBATION
Count					
Count					

Conc:
Cons:

Conditions of Sentence: Habitual Psychological/Psychiatric Alcohol/Drug
Other: NO CONTACT W LYNCH'S BANISHED FROM LAFAYETTE EXCEPT MANDA CHAN COURT

V. Dates Confined to to to
to to to
to to to

Released on Bond Pending Appeal to
Currently Housed In

VI. Fine Indigent Fee Restitution Court Costs 630.50

Conditions of Payment PAYMENTS \$50 MONTH START 4/1/18

By: BARETTA MOSLEY
LAFAYETTE COUNTY COURT
February 21, 2018

Send Prisoner Commitments, Provisional Sentence Orders and Revocation Orders To:
Records Department Court Statistics Division
MDOC (Fax: 601-973-3879) Administrative Office of Courts (AOC)
P.O. Box 24388 P.O. Box 117
Jackson, Ms 39205 Jackson, MS 39205-0117

Send Suspended Sentence/Probation Notices, Provisional Sentence Orders and Rev. Orders to:
Data Operations Court Statistics Division
MDOC (Fax: 601-973-3879) Administrative Office of Courts (AOC)
P.O. Box 24388 P.O. Box 117
Jackson, MS 39205 Jackson, MS 39205-0117

Send Acquittal/Other Notices to: Court Statistics Division, AOC at its address listed above.

Lafayette County Sheriff's Office

711 Jackson Avenue East, Oxford, MS 38655

Reporting Officer's Narrative

Exhibit C

Report Date: 05/30/2017
Type of Incident: 97-3-107 - STALKING, REPEATEDLY FOLLOWING, HARASSING OR MAKING A THREAT

Complaint No:
L17-05138

Case Status
CLOSED

Narrative:

On 05-24-2017 I, Investigator Jarrett Bundren, was at the office and took a phone call in reference to a stalking/harassment complaint. I followed up on the threats and harassment that was reported to me. I was advised that there were a lot of threats on facebook by Matt Reardon, specifically toward Frank and Marlee's and Todd Lynch. I looked at Matt's facebook page and there were several videos and posts of Matt with guns verbally making threats toward Todd and his business. Todd said that he wanted to file charges. After further looking into the threats on facebook and other threats and harassment, Todd filed charges on Matt and Matt was arrested and booked in at Lafayette County Detention Center.

Reporting Officer 7530 BUNDREN, JARRETT

//

Approving Officer C8797 CATHY CONNER

//

IN THE CIRCUIT COURT OF LAFAYETTE COUNTY, MISSISSIPPI

MATTHEW REARDON

PETITIONER

VS.

CAUSE NO. L20-316

STATE OF MISSISSIPPI

DEFENDANT

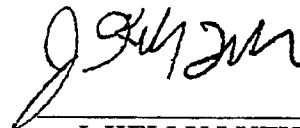
ORDER

This matter is before the Court on Petitioner's motion titled "Motion for Rehearing Under Mississippi Rule 59 Before the Honorable Judge Kent Smith." The Petitioner requests this Court reconsider its Order entered July 30, 2020 in which the Court, under Mississippi Code Annotated Sec. 99-39-11(2), summarily denied Petitioner's request for post-conviction collateral relief. The Petitioner also alleges the undersigned judge should recuse himself from this post-conviction matter.

The Court, being fully advised in the premises and having considered the arguments in Petitioner's motion for rehearing, finds that the motion is not well taken and is hereby DENIED.

The Clerk of the Court is directed to provide a copy of this Order to the Petitioner.

SO ORDERED AND ADJUDGED, this the 12 day of August, 2020.



J. KELLY LUTHER
CIRCUIT COURT JUDGE

FILE THIS THE 12 DAY OF
September, 2020
MINUTE BOOK CVMB PAGE 4731
JEFF BUSBY, CIRCUIT CLERK
BY Jeff Busby D.C.

IN THE CIRCUIT COURT OF LAFAYETTE COUNTY, MISSISSIPPI

MATTHEW REARDON

PETITIONER

VS.

CAUSE NO. L20-316

STATE OF MISSISSIPPI

DEFENDANT

ORDER

This matter is before the Court on Petitioner's motions titled "Motion for Rehearing Under Mississippi Rule 59 Before the Honorable Judge Kent Smith," "Motion for Recusal," and "Motion to Compel Evidence."

The Petitioner requests this Court reconsider its Order entered July 30, 2020 in which the Court, under Mississippi Code Annotated Sec. 99-39-11(2), summarily denied Petitioner's request for post-conviction collateral relief. The Court finds the motion for reconsideration is not well taken and is hereby DENIED. Consequently, the Court finds Petitioner's Motion to Compel Evidence to be MOOT.

Additionally, the Petitioner alleges the undersigned judge should recuse himself from this post-conviction matter. The Court finds the Petitioner's request for recusal to be without merit and hereby DENIED.

The Clerk of the Court is directed to provide a copy of this Order to the Petitioner.

SO ORDERED AND ADJUDGED, this the 3rd day of September, 2020.


J. KELLY LUTHER
CIRCUIT COURT JUDGE

FILE THIS THE 9th DAY OF Sept, 2020
MINUTE BOOK CUM 3 PAGE 4704
JEFF BUSBY, CIRCUIT CLERK
BY S. Peltz D.C.

IN THE CIRCUIT COURT OF LAFAYETTE COUNTY, MISSISSIPPI

MATTHEW REARDON
PLAINTIFF

V

STATE OF MISSISSIPPI
DEFENDANT

CAUSE NO. L20-316

Motion for Recusal

Comes now MATTHEW REARDON, PLAINTIFF in the above-captioned cause, and respectfully moves that the Circuit Court Judge KELLY LUTHER recuse himself from this case on the following grounds:

CONFLICT OF INTEREST DUE TO BEING INFORMED OF ALL FRAUDULENT ACTIVITY CONDUCTED BY LAFAYETTE COUNTY, MS AND STATE OF MISSISSIPPI ON MONDAY JUNE 1ST, 2020 VIA EMAIL TO COURT ADMINISTRATOR KATHY STURDIVANT WHO IN TURN FORWARDED DETAILED EMAILS TO JUDGE KELLY LUTHER. PLAINTIFF WAS PASSED ADVICE BY JUDGE VIA COURT ADMINISTRATOR THAT HE WOULD NEED TO SEEK RELIEF VIA POST CONVICTION RELIEF IN ORDER TO HAVE SAID ISSUES HEARD AND ADDRESSED BY COURT. ON JULY 7, 2020 PETITIONER SUBMITTED POST CONVICTION RELIEF TO TRIAL COURT ASKING FOR RELIEF FROM THE COURT. JUDGE KELLY LUTHER PREJUDICIALLY DENIED MOTION WITHOUT EVEN ALLOWING AN EVIDENTIARY HEARING TO PRESENT FINDINGS OF EVIDENCE AND PROOF. IT IS THIS REASON ALONG WITH PETITIONER'S CASE BEING ASSIGNED TO JUDGE KENT SMITH THAT PETITIONER REQUEST IMMEDIATE, EMERGENCY RELIEF FROM THIS TRIAL COURT, AND PETITIONER FORMALLY ASKS FOR A WRITTEN RESPONSE FROM THIS COURT AS TO WHY JUDGE KELLY LUTHER IS DECIDING CASES FOR JUDGE KENT SMITH WITHOUT HOLDING SO MUCH AS AN EVIDENTIARY HEARING TO EXAMINE CLAIMS OF FRAUD COMMITTED ALONG WITH THE CONSTITUTIONAL RIGHTS OF PETITIONER BEING OUTRIGHT DESTROYED BY STATE AND COUNTY OFFICIALS IN AN OUTRAGEOUS ATTEMPT TO COERCE A FAVORED OUTCOME AND COVER IT UP, WHICH IT ULTIMATELY WOUND UP DOING. EVIDENCE OF EMAIL CORRESPONDENCE PASSED ALONG TO JUDGE LUTHER IS ATTACHED HERETO AS EXHIBIT A.

Respectfully submitted,

MATTHEW O. REARDON
PLAINTIFF

By: 

LAFAYETTE COUNTY
FILED

AUG 12 2020

JEFF BUSBY
CIRCUIT CLERK

By:  D.C.

IN THE CIRCUIT COURT OF LAFAYETTE COUNTY, MISSISSIPPI

MATTHEW REARDON

v.

STATE OF MISSISSIPPI

) NO. L20-316
1K-22
)
)
)

LAFAYETTE COUNTY
FILED

AUG 10 2020

JEFF BUSBY
CIRCUIT CLERK

BY: AMS D.C.

MOTION FOR REHEARING UNDER MISSISSIPPI RULE 59

BEFORE THE HONORABLE JUDGE KENT SMITH

Comes now before the court Matthew Reardon, your petitioner/plaintiff and appeals back to this court a motion for rehearing under MS rule 59 and would state unto the court the following facts:

- 1) That on July 7, 2020 a motion for post conviction relief was filed with this court, the trial court, asking for this court to vacate and set aside his guilty plea entered on July 7, 2017 on the following permitted grounds pursuant to MS Code 99-39-5 (Mississippi Uniform Post-Conviction Relief Collateral Act):
 - A) That the respondent was in direct violation of petitioner's 1st, 8th, and 14th constitutional rights at the time the plea was given.
 - B) That Petitioner's Guilty plea was involuntary due to a denial of his due process rights as guaranteed by the United States and State of Mississippi Constitutions, thus making his plea of guilty a violation of the laws of the State of Mississippi
 - C) That Petitioner received inadequate representation by his legal counsel on record, in which adequate counsel representation likely would have resulted in an outright dismissal of the State's charge. Furthermore petitioner only met with his legal council one time and no discovery motion was ever requested by Petitioner's legal council.

D) That the state has refused to comply with a Freedom of Information Act Request for information regarding the phone call received on May 24, 2017 which through the state's own admission on a more recent public records request ultimately led to the charge being levied against the petitioner.

E) That there exists additional evidence of material facts, not reasonably discoverable at the time involuntary plea was given and not previously presented and heard, which requires vacation of the conviction or sentence in the interest of justice.

- 2) That on July 30, 2020 Circuit Court Judge Kelly Luther **DENIED** petitioner's motion for relief which was brought with merit, in good timing, and in the correct court and jurisdiction.
- 3) Petitioner alleges that his post-conviction relief motion was prejudicially denied with biasness and favorability shown to the respondent, as the grounds on which post-conviction relief was brought along with the alleged fraud conducted by the State and Lafayette County not only warrant but should in fact be interpreted as prejudicial against the petitioner for refusing to hold an evidentiary hearing on the facts and both the states willful refusal and obstructionist tactics in refusing to comply with a FOIA/Public Information Request for the key evidence the state used to compel its warrant and charge
- 4) That Judge Kelly Luther was made aware of these facts before the PCR was filed and there is a conflict of interest in said case calling for a response and recusal

Matthew Reardon petition this court for an evidentiary hearing of facts pursuant to MS rule 59 on this 10th Day
'August, 2020'